

WEBSITE DEVELOPMENT AGREEMENT

This Agreement is made on 20..... in, between:

1. BOOKA LTD., a limited liability company registered in Bulgaria under Company ID (EИК) **208363525**, with registered office at: 10 General Kiselov Str., 9000 Varna, Bulgaria, represented by its Manager, hereinafter referred to as the "**Contractor**",

and

2., Company ID / VAT No.:, with registered office at:, represented by, in his/her capacity as, hereinafter referred to as the "**Client**",

(jointly referred to as the "Parties", and individually as a "Party"),

have agreed as follows:

I. SUBJECT OF THE AGREEMENT

Clause 1. (1) The Contractor undertakes, in exchange for remuneration, to design and develop for the Client a custom website with an integrated online booking system (hereinafter the "**Website**"), in accordance with the technical specification set out in **Annex No. 2** to this Agreement.

(2) The scope of services includes:

- design and UX/UI work;
- front-end and back-end development;
- integration of the online booking system;
- integration of a payment processor (Stripe or another provider specified by the Client);
- initial SEO setup (meta tags, sitemap, robots.txt, structured data);
- configuration of a custom domain and hosting;
- initial population of content provided by the Client;
- (other items, as agreed)

(3) A detailed list of features, pages, language versions and additional modules is set out in **Annex No. 2 — Technical Specification**.

II. TERM AND MILESTONES

Clause 2. (1) The term for performance is (**.....**) **calendar days**, starting from the date on which the initial payment is received in the Contractor's account and the Client has provided all necessary materials (texts, photos, logos, brand identity, etc.).

(2) Performance is structured in the following stages:

Stage	Description	Duration
1	Briefing and approval of site structure	 days
2	Design / key-page mockups	 days
3	Development	 days
4	Testing, revisions and final approval	 days
5	Launch and Client training	 days

(3) The term shall be automatically extended by any period of delay caused by acts or omissions of the Client (late delivery of materials, delayed approvals, scope changes, etc.), as documented in writing (including by email).

III. PRICE AND PAYMENT TERMS

Clause 3. (1) The total price of this Agreement is (.....) EUR / BGN, **exclusive of VAT**, or **with VAT**, if applicable.

(2) Payment shall be made as follows:

Tranche	Amount	Payment trigger
1	50% (.....)	upon signature of this Agreement
2	30% (.....)	upon approval of the design (end of Stage 2)
3	20% (.....)	within 5 business days after the Website is launched in production

(3) Payments shall be made by bank transfer to the following account of the Contractor:

- **Bank:**
- **IBAN:**
- **BIC:**
- **Account holder:** Booka LTD.

(4) The Contractor shall issue an invoice within 5 business days of receipt of each payment.

(5) If any payment is delayed by more than 14 calendar days, the Contractor shall be entitled to suspend work and/or restrict access to any unpaid portions of the Website, without this constituting non-performance on its part.

IV. RIGHTS AND OBLIGATIONS OF THE CONTRACTOR

Clause 4. The Contractor undertakes:

1. to deliver the Website to a professional standard, on time and in accordance with the technical specification;

2. to inform the Client in a timely manner of any circumstance that may affect deadlines or scope;
 3. to keep confidential all confidential information to which it has access;
 4. to provide the Client with brief training (video or online session) on managing content and bookings;
 5. to remediate defects identified within **30 (thirty) calendar days** of the Website launch free of charge, provided such defects are not caused by the Client or third parties.
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V. RIGHTS AND OBLIGATIONS OF THE CLIENT

Clause 5. The Client undertakes:

1. to provide all necessary information, materials (texts, images, logos, brand identity) and feedback in a timely manner;
 2. to make payments by their due dates;
 3. to warrant that it owns or has all necessary rights in the materials it supplies and that the use of such materials in the Website does not infringe any third-party rights;
 4. to designate a single point of contact authorised to approve stages;
 5. not to make technical changes to the Website without prior notice to the Contractor during the warranty period set out in Clause 4.5.
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VI. ACCEPTANCE AND GO-LIVE

Clause 6. (1) Upon completion of the Website the Contractor shall make it available for review in a staging environment.

(2) The Client shall have **7 (seven) calendar days** to submit written comments. If no comments or written rejection are received within this period, the Website shall be deemed accepted without reservation.

(3) Comments outside the approved specification shall be treated as a change request and remunerated separately.

(4) A bilateral **Acceptance Protocol** (Annex No. 3) shall be signed, which constitutes the basis for the final payment.

VII. INTELLECTUAL PROPERTY

Clause 7. (1) Upon full payment of all amounts due under this Agreement, the Client shall be granted a non-exclusive licence to use the final design and content of the Website for the purposes of its own commercial activity.

(2) The Contractor retains all rights in:

- its own code libraries, frameworks, templates and components used in development;
- the online booking system, which is provided for use but is not transferred as ownership;
- its know-how, methodologies and development tools.

(3) The Contractor shall be entitled to reference the Website in its own portfolio, unless the Client expressly objects in writing.

(4) Third-party software and services (Stripe, Resend, Vercel, Google, etc.) are used under their respective terms and are not subject to transfer.

VIII. HOSTING, MAINTENANCE AND ADDITIONAL SERVICES

Clause 8. (1) Maintenance, hosting, updates and technical support after the warranty period in Clause 4.5 are not included in this Agreement and shall be agreed separately under a monthly or annual maintenance contract.

(2) The domain shall be registered in the name of the Client and shall remain the Client's property.

IX. DATA PROTECTION

Clause 9. (1) In connection with operation of the Website (receiving bookings, sending confirmations, etc.), the Contractor processes personal data of end users on behalf of the Client.

(2) The Client is the **controller** of such personal data within the meaning of Regulation (EU) 2016/679 (GDPR), and the Contractor is the **processor**.

(3) The relationship between the Parties relating to the processing of personal data shall be governed by **Annex No. 1 — Data Processing Agreement (DPA)**, which forms an integral part of this Agreement.

X. CONFIDENTIALITY

Clause 10. (1) Each Party undertakes not to disclose to third parties any confidential information that becomes known to it in connection with the performance of this Agreement, and to use such information only for the purposes of this Agreement.

(2) This obligation shall survive for 3 (three) years after termination of this Agreement.

XI. LIABILITY AND WARRANTIES

Clause 11. (1) The Contractor shall not be liable for:

- content provided by the Client or entered after handover of the Website;
- interruptions in third-party services (hosting, payment processor, email provider, domain registrar, etc.);
- consequences of actions of the Client or third parties in the administrative area of the Website;
- indirect, consequential, special or non-material damages, loss of profits, loss of data or business interruption.

(2) The Contractor's aggregate liability under and in connection with this Agreement shall be limited to the amounts actually paid by the Client under this Agreement during the 12 months preceding the event giving rise to the liability.

(3) The limitation in paragraph (2) shall not apply in cases of wilful misconduct or gross negligence, nor to obligations which cannot be limited under applicable law.

XII. FORCE MAJEURE

Clause 12. Neither Party shall be liable for non-performance caused by force majeure (natural disasters, war, large-scale failures of internet infrastructure, acts of governmental authorities, etc.). The affected Party shall notify the other within 7 days.

XIII. TERM AND TERMINATION

Clause 13. (1) This Agreement enters into force on the date of signature and remains in force until full performance of the obligations of both Parties.

(2) This Agreement may be terminated:

1. by mutual written consent;
2. unilaterally by the non-defaulting Party with 14 days' written notice for material breach, not cured within 14 days of receipt of a written notice;
3. immediately by the Contractor in case of payment delay exceeding 30 calendar days.

(3) Upon termination, the Client shall pay remuneration for the work actually performed up to the date of termination.

XIV. GENERAL PROVISIONS

Clause 14. (1) All notices under this Agreement shall be valid if sent by email to the contact addresses listed below, or by registered mail with acknowledgement of receipt.

(2) Amendments and additions may only be made in writing by a signed addendum.

(3) The invalidity or unenforceability of any single clause shall not affect the validity of the remainder of the Agreement.

(4) For matters not governed by this Agreement, the provisions of Bulgarian law shall apply.

(5) Disputes shall be resolved through negotiation; failing agreement, by the competent Bulgarian court at the registered seat of the Contractor.

XV. CONTACT FOR CORRESPONDENCE

For the Contractor: - Contact person: - Email: hello@mail.alternine.co
- Phone:

For the Client: - Contact person: - Email:
..... - Phone:

ANNEXES (integral part of this Agreement)

- **Annex No. 1** — Data Processing Agreement (DPA)
- **Annex No. 2** — Technical Specification
- **Annex No. 3** — Acceptance Protocol (template)

This Agreement is executed in **2 (two)** identical counterparts — one for each Party.

FOR THE CONTRACTOR:	FOR THE CLIENT:
BOOKA LTD.	
_____	_____
.....	
Manager	Title: